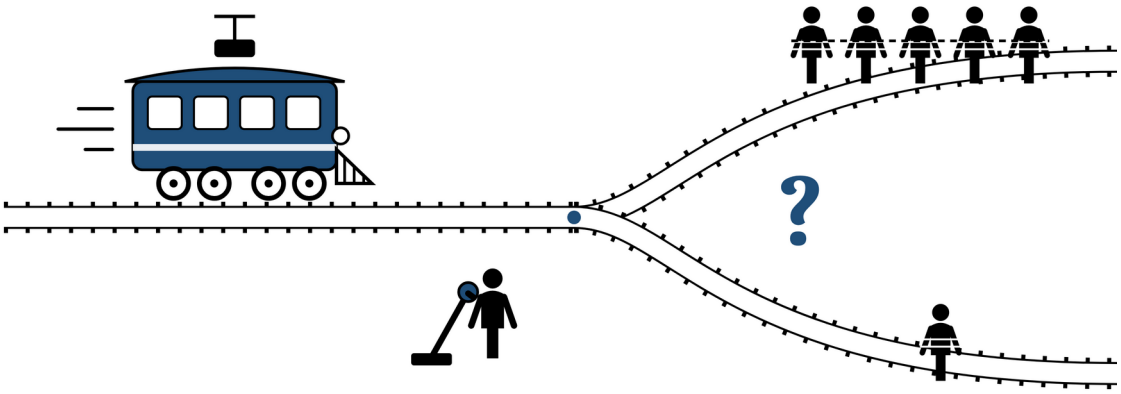
Utilitarianism Booklet



Sixth Form Philosophy • OCR Religious Studies A Level

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Readings and questions on utility, the hedonic calculus, act utilitarianism and rule utilitarianism.

Core approaches: Bentham's principle of utility and Mill's greatest happiness principle.

How to Use This Booklet

This booklet asks what makes an action right if its consequences are what matter: whether pleasure can be measured, whether each act or the rule it falls under should be judged, and whether utility can account for justice. Read each introduction and extract before its questions. Underline the main claim and supporting reasons, then formulate an objection. Write answers in your notes and use the margins for annotations.

Comprehension establishes what a thinker claims. **Analysis** reconstructs an argument and tests its assumptions. **Synthesis** connects positions without erasing their differences. **Evaluation** weighs an objection against the best reply and reaches a defended judgement. These are learning tasks, not separate examination sections.

Each OCR essay carries 40 marks: AO1 knowledge and understanding 16; AO2 analysis and evaluation 24. H573/02 allows two hours for three essays chosen from four. The AO tags show each study task's emphasis. For the argument diagrams, read down each chain, then connect both chains in a sustained judgement about the question.

The OCR focus

The core content is utility, the hedonic calculus, act utilitarianism and rule utilitarianism. Study utility, the greatest balance of good over evil, or pleasure over pain, as it is used in teleological and relativist approaches to ethics; the hedonic calculus as a way of calculating the benefit or harm of an act through its consequences and as a measure of individual pleasure; act utilitarianism as calculating the consequences of each situation on its own merits in promoting the greatest amount of good over evil, or pleasure over pain; and rule utilitarianism as following accepted laws that lead to the greatest overall balance of good over evil, or pleasure over pain, in promoting the common good. The three debates are whether utilitarianism provides a helpful method of moral decision-making, whether an ethical judgement can be based on the extent to which utility is best served in a given situation, and whether it is possible to measure good or pleasure and then reach a moral decision. Bentham and Mill are OCR's suggested reading, with Singer and Pojman; Nozick, Smart, Hooker, Harris, Moore, Driver, MacAskill, Meissner and Chappell, and Mill's essays on Bentham and Whewell are extensions for testing the core positions. Every thinker need not appear in every essay.

Four distinctions to keep separate

Criterion and procedure: What makes an action right is one question; how an agent should decide what to do is another. Bentham's calculus states a criterion which, he says, need not be run before every judgement.

Act and rule: Act utilitarianism judges each action by its own consequences; rule utilitarianism judges an action by the consequences of everyone following the rule it falls under.

Quantity and quality: Bentham measures pleasures by amount along seven circumstances; Mill adds a difference in kind, settled by the preference of competent judges.

Desired and desirable: That people do desire something is a fact about psychology; that it is desirable is a claim about value. Mill's proof moves from the first to the second.

'Teleological' means that rightness depends on the end an action produces; 'relativist', in the sense used here, means that no act is right or wrong in itself. Keep these distinctions visible throughout your reading.

Sources: Jeremy Bentham, An Introduction to the Principles of Morals and Legislation (1789), and John Stuart Mill, 'Bentham' (1838), 'Whewell on Moral Philosophy' (1852) and Utilitarianism (1863), in Utilitarianism and Other Essays, ed. Alan Ryan (Penguin, 1987); Robert Nozick, Anarchy, State, and Utopia (1974), J. J. C. Smart, 'Extreme and Restricted Utilitarianism', Philosophical Quarterly (1956), Brad Hooker, 'Rule-Consequentialism' (2000), and John Harris, 'The Survival Lottery', Philosophy (1975), in Russ Shafer-Landau (ed.), Ethical Theory: An Anthology, 2nd edition (Wiley-Blackwell, 2013); Julia Driver, 'The History of Utilitarianism', Stanford Encyclopedia of Philosophy (Summer 2026 edition); William MacAskill, Darius Meissner and Richard Yetter Chappell, 'The Rights Objection' and 'Elements and Types of Utilitarianism', in An Introduction to Utilitarianism (utilitarianism.net, 2023). Extracts are quoted verbatim, with the authors' note markers and marginal summaries omitted. The four final essay plans are possible approaches to questions in OCR's forms, not official model answers.

Part I Bentham: the principle of utility and its measurement

1 Bentham and the principle of utility

Introduction

Jeremy Bentham (1748–1832) trained as a lawyer and wrote to reform the law. An Introduction to the Principles of Morals and Legislation (1789) opens with a claim about human nature and a standard for judging action: the principle of utility. Read the extracts for two things: what Bentham says utility is, and what he says the words 'ought', 'right' and 'wrong' mean once the principle is accepted. He applies the principle to 'every action whatsoever', including acts of government. This first topic establishes the vocabulary the rest of the booklet uses.

The text

Bentham, An Introduction to the Principles of Morals and Legislation (1789), ch. I, §§I–II.

> I. Nature has placed mankind under the governance of two sovereign masters, pain and pleasure. It is for them alone to point out what we ought to do, as well as to determine what we shall do. … The principle of utility recognizes this subjection, and assumes it for the foundation of that system, the object of which is to rear the fabric of felicity by the hands of reason and of law. …
>
> II. The principle of utility is the foundation of the present work: it will be proper therefore at the outset to give an explicit and determinate account of what is meant by it. By the principle of utility is meant that principle which approves or disapproves of every action whatsoever, according to the tendency which it appears to have to augment or diminish the happiness of the party whose interest is in question: or, what is the same thing in other words, to promote or to oppose that happiness. I say of every action whatsoever; and therefore not only of every action of a private individual, but of every measure of government.

Bentham reading 2 The community and the meaning of 'ought'

Bentham, An Introduction to the Principles of Morals and Legislation (1789), ch. I, §§IV and X.

> IV. … The community is a fictitious body, composed of the individual persons who are considered as constituting as it were its members. The interest of the community then is, what? – the sum of the interests of the several members who compose it. …
>
> X. Of an action that is conformable to the principle of utility one may always say either that it is one that ought to be done, or at least that it is not one that ought not to be done. One may say also, that it is right it should be done; at least that it is not wrong it should be done … When thus interpreted, the words ought, and right and wrong, and others of that stamp, have a meaning: when otherwise, they have none.

Reading the argument

The 'governance of two sovereign masters' is a claim about psychology: pleasure and pain determine what people do. The principle of utility is a claim about ethics: they also determine what people ought to do. The first is psychological hedonism; the second is ethical hedonism. Bentham moves from one to the other within a sentence, and critics ask whether the move is earned. 'Tendency' matters: an action is judged by the balance of pleasure and pain it is likely to produce, not by its motive. This makes the theory teleological, from the Greek telos, an end: rightness depends on the end produced. It is relativist in the examination's sense: no act is right or wrong in itself.

Reading 2 defines the community as a 'fictitious body' whose interest is the sum of its members' interests. A school's interest is the sum of the interests of its pupils and staff; a policy that benefits 'the school' without benefiting anyone in it is, for Bentham, a confusion. §X makes the strongest claim: 'ought', 'right' and 'wrong' have a meaning only when interpreted through utility. This is a thesis about moral language, and any discussion of whether judgements of right and wrong can be based on utility must confront it.

Questions for study

Comprehension *(AO1)*

1. Using Bentham's extract, explain what the principle of utility 'approves or disapproves of', and what it means to say that the principle applies to 'every action whatsoever'.
2. Explain why Bentham calls the community a 'fictitious body', and what follows for the meaning of 'the interest of the community'.

Analysis *(AO1 and AO2)*

1. Analyse the move in Bentham's first paragraph from the claim that pleasure and pain 'determine what we shall do' to the claim that they 'point out what we ought to do', and identify what must be assumed for the second claim to follow from the first.

Synthesis *(AO1 and AO2)*

1. Synthesise Bentham's definition of utility with his account of 'ought', 'right' and 'wrong' into a single statement of what makes an action right, and show why the position counts as teleological and relativist.

Evaluation *(AO2)*

1. Critically evaluate Bentham's claim that the words 'ought', 'right' and 'wrong' have a meaning only when interpreted through utility.
2. Critically evaluate whether judging actions by their 'tendency' to augment or diminish happiness makes every ethical judgement relative to the situation, and whether this is a strength or a weakness of a teleological approach to ethics.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

Assess the view that an ethical judgement about something being good, bad, right or wrong can be based on the extent to which, in any given situation, utility is best served. [40]

2 Bentham and the hedonic calculus

Introduction

If pleasure and pain are the only things that matter, a moral decision needs a way of comparing them. Chapter IV supplies it. Bentham does not use the phrase 'hedonic calculus'; he lists the 'circumstances' that fix the value of a pleasure or pain and sets out a 'process' for estimating the tendency of an act. Read the extracts for the seven circumstances, the order in which they are introduced, and Bentham's own statement of how strictly the process is meant to be followed.

The text

Bentham, An Introduction to the Principles of Morals and Legislation (1789), ch. IV, §§II–IV.

> II. To a person considered by himself the value of a pleasure or pain considered by itself will be greater or less, according to the four following circumstances:
>
> 1. Its intensity.
>
> 2. Its duration.
>
> 3. Its certainty or uncertainty.
>
> 4. Its propinquity or remoteness.
>
> III. … But when the value of any pleasure or pain is considered for the purpose of estimating the tendency of any act by which it is produced, there are two other circumstances to be taken into the account; these are:
>
> 5. Its fecundity, or the chance it has of being followed by sensations of the same kind …
>
> 6. Its purity, or the chance it has of not being followed by sensations of the opposite kind …
>
> IV. To a number of persons, with reference to each of whom the value of a pleasure or a pain is considered, it will be greater or less, according to seven circumstances: to wit, the six preceding ones; … And one other; to wit:
>
> 7. Its extent; that is, the number of persons to whom it extends; or (in other words) who are affected by it.

Bentham reading 2 The process and its use

Bentham, An Introduction to the Principles of Morals and Legislation (1789), ch. IV, §§V–VI.

> V. To take an exact account then of the general tendency of any act, by which the interests of a community are affected, proceed as follows. Begin with any one person of those whose interests seem most immediately to be affected by it: and take an account,
>
> 1. Of the value of each distinguishable pleasure which appears to be produced by it in the first instance.
>
> 2. Of the value of each pain which appears to be produced by it in the first instance. …
>
> 5. Sum up all the values of all the pleasures on the one side, and those of all the pains on the other. …
>
> 6. Take an account of the number of persons whose interests appear to be concerned; and repeat the above process with respect to each. … Take the balance; which, if on the side of pleasure, will give the general good tendency of the act, with respect to the total number or community of individuals concerned …
>
> VI. It is not to be expected that this process should be strictly pursued previously to every moral judgement, or to every legislative or judicial operation. It may, however, be always kept in view: and as near as the process actually pursued on these occasions approaches to it, so near will such process approach to the character of an exact one.

Reading the argument

'Propinquity' means nearness in time; 'fecundity' is the chance of being followed by more sensations of the same kind; 'purity' the chance of not being followed by the opposite kind. Four circumstances belong to a pleasure or pain taken on its own; two concern what follows from the act that produces it; the seventh, extent, concerns how many people are affected, and only it makes the calculus a social rather than a prudential instrument. The process in §V is a sum: value each pleasure and pain for one person, strike the balance, repeat for each person, and take the balance across all. Nothing in it supplies a unit for intensity or a rate of exchange between intensity and duration; Bentham assumes that comparison is possible without saying how.

§VI is the sentence most often left out. The process is not expected to be ‘strictly pursued previously to every moral judgement’; it is to be ‘kept in view’, and a judgement is exact in proportion as it approaches it. Driver (§2.2) draws the consequence: Bentham does not ask that the circumstances figure in every deliberation, so experience and ‘rules of thumb’ guide ordinary conduct, and a rule may be overridden when keeping it would conflict with promoting the good. This separates a criterion of right action from a procedure for deciding. A school deciding whether to allow phones at break can run the exercise for each pupil and then across the year group; it shows what the calculus demands and where estimates replace measurements.

Questions for study

Comprehension *(AO1)*

1. Using Bentham’s extract, explain the difference between the four circumstances that belong to a pleasure ‘considered by itself’ and the two that concern ‘the tendency of any act by which it is produced’.
2. Explain what Bentham means when he says that the process is ‘not to be expected’ to be ‘strictly pursued previously to every moral judgement’, and what it means for the process to be ‘kept in view’.

Analysis *(AO1 and AO2)*

1. Analyse the process in Bentham’s second reading as a sequence of steps, and identify the point at which it requires a comparison that the extract does not say how to make.
2. Analyse the claim that the hedonic calculus is a way of ‘calculating the benefit or harm of an act through its consequences’, and identify which of the seven circumstances concern consequences rather than the pleasure itself.

Synthesis *(AO1 and AO2)*

1. Synthesise Bentham’s seven circumstances with his principle that the interest of the community is ‘the sum of the interests of the several members’, and show what ‘extent’ adds to a calculation made for one person.

Evaluation *(AO2)*

1. Critically evaluate whether it is possible to measure good or pleasure by Bentham's seven circumstances and then reach a moral decision.
2. Critically evaluate whether Bentham's admission that the process need not be 'strictly pursued' strengthens or weakens the hedonic calculus as a 'measure of individual pleasure'.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

'The hedonic calculus is the most important part of utilitarianism.' Discuss. [40]

3 Bentham and act utilitarianism

Introduction

Act utilitarianism judges each action by the consequences of that action, taken on its own merits. The position is attributed to Bentham, and the extract from chapter XIII shows it at work. Punishment is his test case: punishment is pain, so it is an evil in itself, and it may be inflicted only where it prevents a greater evil. The second reading, from chapter II, explains why Bentham thinks no other principle can do this work. 'Sympathy and antipathy' is his name for judging by one's own approval or disgust.

The text

Bentham, An Introduction to the Principles of Morals and Legislation (1789), ch. XIII, 'Cases Unmeet for Punishment', §§II–III.

> II. But all punishment is mischief: all punishment in itself is evil. Upon the principle of utility, if it ought at all to be admitted, it ought only to be admitted in as far as it promises to exclude some greater evil.
>
> III. It is plain, therefore, that in the following cases punishment ought not to be inflicted.
>
> 1. Where it is groundless: where there is no mischief for it to prevent; the act not being mischievous upon the whole.
>
> 2. Where it must be inefficacious: where it cannot act so as to prevent the mischief.
>
> 3. Where it is unprofitable, or too expensive: where the mischief it would produce would be greater than what it prevented.
>
> 4. Where it is needless: where the mischief may be prevented, or cease of itself, without it: that is, at a cheaper rate.

Bentham reading 2 The principle of sympathy and antipathy

Bentham, An Introduction to the Principles of Morals and Legislation (1789), ch. II, §§XI–XII and XIV.

> XI. ... By the principle of sympathy and antipathy, I mean that principle which approves or disapproves of certain actions, not on account of their tending to augment the happiness, nor yet on account of their tending to diminish the happiness of the party whose interest is in question, but merely because a man finds himself disposed to approve or disapprove of them ...
>
> XII. It is manifest, that this is rather a principle in name than in reality: it is not a positive principle of itself, so much as a term employed to signify the negation of all principle. What one expects to find in a principle is something that points out some external consideration, as a means of warranting and guiding the internal sentiments of approbation and disapprobation: this expectation is but ill fulfilled by a proposition, which does neither more nor less than hold up each of those sentiments as a ground and standard for itself. ...
>
> XIV. The various systems that have been formed concerning the standard of right and wrong, may all be reduced to the principle of sympathy and antipathy. One account may serve for all of them. They consist all of them in so many contrivances for avoiding the obligation of appealing to any external standard, and for prevailing upon the reader to accept of the author's sentiment or opinion as a reason for itself.

Reading the argument

'Mischief' means harm; 'unmeet', in the chapter's title, means unfitting. The reasoning is act-utilitarian in form: a punishment is justified only when its own consequences, the pain it inflicts set against the mischief it prevents, show a balance of good. The four cases are the four ways the balance can fail: no mischief to prevent (groundless), a punishment that cannot prevent it (inefficacious), one that costs more than it saves (unprofitable), or mischief that would cease without it (needless). A detention that no longer deters, or that punishes an act which harmed no one, fails the test. Bentham

applies the test on behalf of a legislator to a class of acts; the act utilitarian applies it to each situation on its own merits.

Reading 2 gives Bentham's argument for utility as a method. A principle should point to 'some external consideration' that warrants our sentiments; sympathy and antipathy hold up each sentiment 'as a ground and standard for itself'. Bentham claims that every rival standard reduces to this. A critic can reply that the principle of utility also rests on a sentiment, approval of pleasure, and that Bentham has not shown why that sentiment is 'external' while the others are not. Act utilitarianism answers 'what should be done here?' with a calculation; the objections ask whether the calculation can be done in time, and whether its answers can be trusted when they conflict with settled judgements about justice.

Questions for study

Comprehension *(AO1)*

1. Using Bentham's extract, explain why 'all punishment in itself is evil', and the condition under which the principle of utility admits it.
2. Explain the four cases in which punishment 'ought not to be inflicted', using a school sanction as the example for each.

Analysis *(AO1 and AO2)*

1. Analyse Bentham's treatment of punishment as a case of 'calculating the consequences of each situation on its own merits', and identify what must be known about a situation before the calculation can be made.
2. Analyse Bentham's argument that the principle of sympathy and antipathy is 'the negation of all principle', and identify the assumption on which his claim that utility is an 'external standard' depends.

Synthesis *(AO1 and AO2)*

1. Synthesise the hedonic calculus (Topic 2) with Bentham's account of when punishment is 'unprofitable', and show how the calculus decides whether a sanction produces more mischief than it prevents.

Evaluation *(AO2)*

1. Critically evaluate whether act utilitarianism, understood as 'calculating the consequences of each situation on its own merits', provides a helpful method of moral decision-making for someone who must decide quickly and without full information.
2. Critically evaluate Bentham's claim that every standard of right and wrong other than utility reduces to the principle of sympathy and antipathy.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

'An action is morally justified if it produces the greatest amount of good over evil.' Discuss. [40]

Part II Mill: the greatest happiness principle

4 Mill and the greatest happiness principle

Introduction

John Stuart Mill (1806–1873) was educated by his father, James Mill, as Bentham's intellectual heir, and Utilitarianism (1863) defends the theory against its critics. The second chapter states the creed and answers the oldest objection, that a philosophy of pleasure is fit only for swine. Mill's answer changes the theory: not all pleasures are of equal value, and the difference is one of quality, not amount. Nozick's experience machine, a century later, tests the creed's claim that pleasure and freedom from pain are the only things desirable as ends.

The text

Mill, Utilitarianism (1863), ch. II, para. 2.

> The creed which accepts as the foundation of morals, Utility, or the Greatest Happiness Principle, holds that actions are right in proportion as they tend to promote happiness, wrong as they tend to produce the reverse of happiness. By happiness is intended pleasure, and the absence of pain; by unhappiness, pain, and the privation of pleasure. ... But these supplementary explanations do not affect the theory of life on which this theory of morality is grounded – namely, that pleasure, and freedom from pain, are the only things desirable as ends; and that all desirable things ... are desirable either for the pleasure inherent in themselves, or as means to the promotion of pleasure and the prevention of pain.

Mill reading 2 A doctrine worthy only of swine

Mill, Utilitarianism (1863), ch. II, paras 3–4.

> To suppose that life has (as they express it) no higher end than pleasure – no better and nobler object of desire and pursuit – they designate as utterly mean and grovelling; as a doctrine worthy only of swine, to whom the followers of Epicurus were, at a very early period, contemptuously likened ...

> When thus attacked, the Epicureans have always answered, that it is not they, but their accusers, who represent human nature in a degrading light; since the accusation supposes human beings to be capable of no pleasures except those of which swine are capable. ... Human beings have faculties more elevated than the animal appetites, and when once made conscious of them, do not regard anything as happiness which does not include their gratification. ... It is quite compatible with the principle of utility to recognize the fact, that some kinds of pleasure are more desirable and more valuable than others. It would be absurd that while, in estimating all other things, quality is considered as well as quantity, the estimation of pleasures should be supposed to depend on quantity alone.

Nozick reading The experience machine

Robert Nozick, Anarchy, State, and Utopia (1974), pp. 42–5; in Russ Shafer-Landau (ed.), Ethical Theory: An Anthology, 2nd edition (2013), p. 264.

> Suppose there were an experience machine that would give you any experience you desired. Superduper neuropsychologists could stimulate your brain so that you would think and feel you were writing a great novel, or making a friend, or reading an interesting book. ... Would you plug in? What else can matter to us, other than how our lives feel from the inside? ... First, we want to do certain things, and not just have the experience of doing them. ... A second reason for not plugging in is that we want to be a certain way, to be a certain sort of person. ... Plugging into the machine is a kind of suicide.

Reading the argument

'Right in proportion as they tend to promote happiness' states a criterion of rightness: the greater the balance of pleasure over pain an action tends to produce, the more right it is. The 'theory of life' is a claim about value: pleasure and the absence of pain are the only things desirable as ends. The 'theory of morality' is built on it: right action promotes that end. Mill's 'tend' is Bentham's 'tendency', and so is the end. The Epicurean reply introduces the difference: if human beings have 'faculties more elevated than the animal appetites', a life of swinish pleasure is not the human good, and a utilitarian can say so.

Mill holds it ‘absurd’ to estimate pleasures by quantity alone, which is Bentham’s route (Topic 5). If a pleasure is more valuable for a reason other than its pleasantness, critics reply, pleasure is no longer the only thing valued. Nozick presses from outside the theory. If all that matters is how life feels from the inside, one should plug in; most people would not, because they want to do things and to be a certain sort of person. A utilitarian can reply that the refusal reflects distrust of the machine or a bias in favour of the familiar, but must show that the hesitation is irrational, not merely that it exists.

Questions for study

Comprehension *(AO1)*

1. Using Mill’s extract, explain the difference between the ‘theory of life’ and the ‘theory of morality’, and how the second is ‘grounded’ on the first.
2. Explain the objection that utilitarianism is ‘a doctrine worthy only of swine’, and the Epicurean reply that Mill gives to it.

Analysis *(AO1 and AO2)*

1. Analyse the creed’s statement that actions are right ‘in proportion as they tend to promote happiness’, and identify what this implies about whether an action can be right or wrong in itself.
2. Analyse Nozick’s experience machine as an argument against the claim that pleasure and freedom from pain are ‘the only things desirable as ends’, setting out its premises and conclusion.

Synthesis *(AO1 and AO2)*

1. Synthesise Bentham’s principle of utility (Topic 1) with Mill’s greatest happiness principle into a single statement of what both accept, and identify the one point in Mill’s reply to the ‘swine’ objection that Bentham would not accept.

Evaluation *(AO2)*

1. Critically evaluate whether 'the greatest balance of good over evil, or pleasure over pain' can remain the standard of right action if, as Mill claims, some pleasures are more valuable than others.
2. Critically evaluate whether the experience machine shows that utility, understood as pleasure and the absence of pain, cannot be the only thing that matters in moral decision-making.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

'The moral action is the one which has the greatest balance of pleasure over pain.' Discuss. [40]

5 Mill and the quality of pleasures

Introduction

Mill must now say what a difference of quality in pleasures is and how it can be known. His answer is a test: of two pleasures, the one preferred by all or almost all who have experience of both is the more valuable, and if they prefer it even at the cost of greater discontent, its superiority in quality outweighs quantity. The verdict of these 'competent judges', Mill adds, is final. Bentham's defenders reply that the same preferences can be explained without giving up measurement by amount.

The text

Mill, Utilitarianism (1863), ch. II, paras 5–6.

> Of two pleasures, if there be one to which all or almost all who have experience of both give a decided preference, irrespective of any feeling of moral obligation to prefer it, that is the more desirable pleasure. If one of the two is, by those who are competently acquainted with both, placed so far above the other that they prefer it, even though knowing it to be attended with a greater amount of discontent, and would not resign it for any quantity of the other pleasure which their nature is capable of, we are justified in ascribing to the preferred enjoyment a superiority in quality, so far outweighing quantity as to render it, in comparison, of small account.
>
> Now it is an unquestionable fact that those who are equally acquainted with, and equally capable of appreciating and enjoying, both, do give a most marked preference to the manner of existence which employs their higher faculties. ... but its most appropriate appellation is a sense of dignity ... Whoever supposes that this preference takes place at a sacrifice of happiness ... confounds the two very different ideas, of happiness, and content. ... It is better to be a human being dissatisfied than a pig satisfied; better to be Socrates dissatisfied than a fool satisfied. And if the fool, or the pig, is of a different opinion, it is because they only know their own side of the question.

Mill reading 2 The verdict of competent judges

Mill, Utilitarianism (1863), ch. II, para. 8.

> From this verdict of the only competent judges, I apprehend there can be no appeal. ... And there needs be the less hesitation to accept this judgement respecting the quality of pleasures, since there is no other tribunal to be referred to even on the question of quantity. What means are there of determining which is the acutest of two pains, or the intensest of two pleasurable sensations, except the general suffrage of those who are familiar with both? Neither pains nor pleasures are homogeneous, and pain is always heterogeneous with pleasure.

Reading the argument

The test has two parts. A 'decided preference' by those who know both pleasures marks the more desirable; a preference held 'even though knowing it to be attended with a greater amount of discontent' marks a difference in kind. 'Socrates dissatisfied' is the illustration, not the argument. The argument rests on 'a sense of dignity': beings with higher faculties will not trade them for any quantity of lower pleasure. Mill separates happiness from content: a being with low capacities is more easily satisfied, but satisfaction is not the measure. Ask whether the preferences of competent judges reveal that one pleasure contains more value, or define it; if the latter, a dissenting judge is not mistaken but outvoted.

Reading 2 answers the charge that quality cannot be measured: quantity is no better placed. Pains and pleasures are not 'homogeneous', so which of two pains is the acuter can be settled only by 'the general suffrage of those who are familiar with both'. If so, Bentham's calculus already depends on experienced judgement. Driver (§2.3) constructs the reply Bentham could give: the pleasures Mill calls intellectual score more highly than the sensual ones along several of his circumstances, such as duration and fecundity, so the judges' preference is explained by quantity, not quality. The cost, Driver notes, is the oyster: Bentham must concede that a very happy oyster living long enough could, in principle, have a better life than a human being. Whether that is absurd or acceptable is the question for evaluation.

Questions for study

Comprehension *(AO1)*

1. Using Mill's extract, explain the test by which one pleasure is shown to be of higher quality than another, and the role of 'a sense of dignity' in it.
2. Explain why, in Mill's second reading, the judgement of competent judges is needed 'even on the question of quantity'.

Analysis *(AO1 and AO2)*

1. Analyse Mill's distinction between happiness and content, and identify the assumption that allows him to say that Socrates dissatisfied is happier than a fool satisfied.
2. Analyse Bentham's quantitative reply, that the pleasures Mill calls higher simply score more on several of the seven circumstances, and identify which circumstances it relies on and what it must concede about a long life of simple pleasure.

Synthesis *(AO1 and AO2)*

1. Synthesise Mill's competent judges with Bentham's hedonic calculus (Topic 2) to show whether a single 'measure of individual pleasure' can accommodate both quantity and quality.

Evaluation *(AO2)*

1. Critically evaluate whether the preference of competent judges shows that higher pleasures are more valuable, or only that competent judges prefer them.
2. Critically evaluate whether it is possible to measure good or pleasure and then reach a moral decision if, as Mill claims, 'neither pains nor pleasures are homogeneous'.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

Critically assess the hedonic calculus as a 'measure of individual pleasure'. [40]

6 Mill and rule utilitarianism

Introduction

Rule utilitarianism holds that an action is right when it follows a rule whose general observance produces the greatest balance of good over evil. The position is attributed to Mill, and the readings show its textual basis. To the objection that there is no time to calculate before acting, Mill answers that the experience of the human species has done the calculating: the received rules of morality are its results. In the essay on Whewell he explains why a rule is judged by the consequences of a class of actions. Smart states the objection every rule utilitarian must answer: why keep a rule when breaking it would do more good?

The text

Mill, Utilitarianism (1863), ch. II, para. 24.

> The answer to the objection is, that there has been ample time, namely, the whole past duration of the human species. ... mankind must by this time have acquired positive beliefs as to the effects of some actions on their happiness; and the beliefs which have thus come down are the rules of morality for the multitude, and for the philosopher until he has succeeded in finding better. ... It is a strange notion that the acknowledgement of a first principle is inconsistent with the admission of secondary ones. To inform a traveller respecting the place of his ultimate destination, is not to forbid the use of landmarks and direction-posts on the way. ... Nobody argues that the art of navigation is not founded on astronomy, because sailors cannot wait to calculate the Nautical Almanack. Being rational creatures, they go to sea with it ready calculated; and all rational creatures go out upon the sea of life with their minds made up on the common questions of right and wrong, as well as on many of the far more difficult questions of wise and foolish.

Mill reading 2 Classes of actions and the exception

Mill, 'Whewell on Moral Philosophy' (1852), paras 33, 38–39.

> Prudence, indeed, depends on a calculation of the consequences of individual actions, while for the establishment of moral rules it is only necessary to calculate the

> consequences of classes of actions – a much easier matter. ... If one person may break through the rule on his own judgement, the same liberty cannot be refused to others; and since no one could rely on the rule's being observed, the rule would cease to exist. If a hundred infringements would produce all the mischief implied in the abrogation of the rule, a hundredth part of that mischief must be debited to each one of the infringements, though we may not be able to trace it home individually. And this hundredth part will generally far outweigh any good expected to arise from the individual act. ... The essential is, that the exception should be itself a general rule ...

Smart reading Rule-worship

J. J. C. Smart, 'Extreme and Restricted Utilitarianism', Philosophical Quarterly 6 (1956), pp. 344–54, §3; in Shafer-Landau (ed.), Ethical Theory (2013), p. 425.

> Suppose that there is a rule R and that in 99% of cases the best possible results are obtained by acting in accordance with R. Then clearly R is a useful rule of thumb ... But is it not monstrous to suppose that if we have worked out the consequences and if we have perfect faith in the impartiality of our calculations, and if we know that in this instance to break R will have better results than to keep it, we should nevertheless obey the rule? ... Is not this a form of superstitious rule-worship (easily explicable psychologically) and not the rational thought of a philosopher?

Reading the argument

'Secondary principles' are the rules of ordinary morality, such as 'do not lie' and 'keep promises'; the 'first principle' is utility. Mill's claim is that acknowledging a first principle is consistent with using secondary ones; to think otherwise is a 'strange notion'. 'Landmarks and direction-posts' and the Nautical Almanack are the images. The rules are the best current summary of what experience shows to promote happiness, 'until he has succeeded in finding better'. Textbooks call this weak rule utilitarianism: rules are to be followed, a rule can be revised, and an exception can be admitted where its limits are defined.

The Whewell reading supplies the argument. Prudence calculates the consequences of individual actions; morality needs only 'the consequences of classes of actions'. Breaking a rule 'on

his own judgement' is not an isolated act: if one person may do it, all may, 'the rule would cease to exist', and a share of that mischief is 'debited' to each infringement. The requirement that 'the exception should be itself a general rule' separates Mill from act utilitarianism, which Smart calls 'extreme' and which treats rules as rules of thumb. Smart presses the dilemma: if rules are rules of thumb, the rule utilitarian is an act utilitarian who saves time; if they are more, then where breaking R does more good, keeping R is 'rule-worship'. Mill's debiting argument is the reply: the rare case is never only one case. Whether that holds when the breach is secret is the hardest case.

Questions for study

Comprehension *(AO1)*

1. Using Mill's extract, explain what the 'landmarks and direction-posts' and the Nautical Almanack are meant to show about the relation between the principle of utility and the rules of morality.
2. Explain why, in the Whewell reading, Mill says that 'a hundredth part of that mischief must be debited to each one of the infringements'.

Analysis *(AO1 and AO2)*

1. Analyse Mill's reply to the objection that there is no time to calculate, and identify what the reply assumes about the reliability of 'the whole past duration of the human species' as a record of the consequences of actions.
2. Analyse Smart's rule R argument as premises and a conclusion, and identify the claim a rule utilitarian must deny to escape the charge of 'rule-worship'.

Synthesis *(AO1 and AO2)*

1. Synthesise Mill's secondary principles with Bentham's statement that the process need not be 'strictly pursued' before every judgement (Topic 2), and show what rule utilitarianism adds that Bentham's rules of thumb lack.

Evaluation *(AO2)*

1. Critically evaluate whether 'following accepted laws that lead to the greatest overall balance of good over evil, or pleasure over pain' answers Smart's charge of rule-worship, or merely renames act utilitarianism.
2. Critically evaluate whether Mill's requirement that an exception 'should be itself a general rule' makes rule utilitarianism a more helpful method of moral decision-making than act utilitarianism.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

Assess the view that moral action is a matter of following accepted laws that lead to the greatest balance of pleasure over pain. [40]

7 Mill and the proof of utility

Introduction

Can the principle of utility be proved? Bentham says no: 'that which is used to prove every thing else, cannot itself be proved'. Mill agrees that first principles admit no proof 'in the ordinary acceptation of the term', then offers the nearest thing to one: an argument from what people in fact desire to what is desirable. Moore's objection, in Driver's reading, is that 'desirable' does not mean 'able to be desired'.

The text

Mill, Utilitarianism (1863), ch. IV, para. 3.

> The only proof capable of being given that an object is visible, is that people actually see it. ... In like manner, I apprehend, the sole evidence it is possible to produce that anything is desirable, is that people do actually desire it. ... No reason can be given why the general happiness is desirable, except that each person, so far as he believes it to be attainable, desires his own happiness. This, however, being a fact, we have not only all the proof which the case admits of, but all which it is possible to require, that happiness is a good: that each person's happiness is a good to that person, and the general happiness, therefore, a good to the aggregate of all persons. Happiness has made out its title as one of the ends of conduct, and consequently one of the criteria of morality.

Driver reading Moore's objection

Julia Driver, 'The History of Utilitarianism', Stanford Encyclopedia of Philosophy (Summer 2026 edition), §2.3. Driver quotes Moore.

> G. E. Moore (1873–1958) criticized this as fallacious. He argued that it rested on an obvious ambiguity:
>
> ... "Good", he tells us, means "desirable", and you can only find out what is desirable by seeking to find out what is actually desired.... The fact is that "desirable" does not mean "able to be desired" as "visible" means "able to be seen." The desirable means simply what ought to be desired or deserves to be desired ... (Moore, PE, 66–7)

Reading the argument

Mill's argument has three steps. The only evidence that a thing is desirable is that it is desired; each person desires his own happiness; so each person's happiness is a good to that person, and the general happiness a good to 'the aggregate of all persons'. The analogy with 'visible' carries the first step. Moore objects that it equivocates: 'visible' means able to be seen, but 'desirable' means worthy of being desired, and a thing can be desired without deserving it. Mill's defenders reply that he is not defining 'desirable' but naming the only evidence available for a claim about ends; proof in the strict sense was disclaimed at the chapter's start.

The third step draws a second objection. That my happiness is a good to me does not show that the sum of everyone's happiness is a good to anyone, let alone a good each of us ought to promote; Bentham's 'extent' requires impartial concern, and the proof has not supplied it. Bentham refused the task: 'that which is used to prove every thing else, cannot itself be proved: a chain of proofs must have their commencement somewhere' (ch. I, §XI), so a starting point can be defended only by showing that its rivals are confused. Both thinkers rest utility on an appeal to what everyone already accepts. Whether that is a proof, a persuasion, or a description of what people in fact approve is the question on which basing ethical judgements on utility turns.

Questions for study

Comprehension *(AO1)*

1. Using Mill's extract, explain why 'the only proof capable of being given that an object is visible, is that people actually see it' is meant to support the claim that happiness is desirable.
2. Explain why Bentham holds that the principle of utility 'cannot itself be proved', and why Mill agrees that first principles admit no proof 'in the ordinary acceptation of the term'.

Analysis *(AO1 and AO2)*

1. Analyse Mill's proof as three steps, and identify the step at which the conclusion that the general happiness is 'a good to the aggregate of all persons' is reached.
2. Analyse Moore's objection in Driver's reading, and identify whether it shows that Mill's conclusion is false or only that his analogy fails to support it.

Synthesis *(AO1 and AO2)*

1. Synthesise Bentham's refusal to prove the principle with Mill's claim that the sole evidence that anything is desirable is that people desire it, and show what both take the ultimate basis of an ethical judgement to be.

Evaluation *(AO2)*

1. Critically evaluate whether an ethical judgement about something being good or right can be based on the fact that people desire it.
2. Critically evaluate whether the failure of Mill's proof, if it fails, leaves utility without any basis as a standard for judging actions good, bad, right or wrong.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

'Utility is the most important part of utilitarianism.' Discuss. [40]

Part III Justice, rights and the common good

8 Mill and justice

Introduction

The strongest objection to utilitarianism is that it would sacrifice an innocent person when the sum of happiness required it. Mill's fifth chapter is his reply. A right is a claim that society ought to defend, and the only reason it ought is general utility; justice names the rules that protect the essentials of human well-being and are therefore of 'more absolute obligation' than any others. Yet Mill admits that in particular cases another duty may overrule them. Harris's thought experiment puts the objection in its sharpest form.

The text

Mill, Utilitarianism (1863), ch. V, para. 25.

> To have a right, then, is, I conceive, to have something which society ought to defend me in the possession of. If the objector goes on to ask why it ought, I can give him no other reason than general utility. ... The interest involved is that of security, to every one's feelings the most vital of all interests. ... The claim assumes that character of absoluteness, that apparent infinity, and incommensurability with all other considerations ...

Mill reading 2 Justice and its exceptions

Mill, Utilitarianism (1863), ch. V, paras 32 and 37.

> Justice is a name for certain classes of moral rules, which concern the essentials of human well-being more nearly, and are therefore of more absolute obligation, than any other rules for the guidance of life ...
>
> It appears from what has been said, that justice is a name for certain moral requirements, which, regarded collectively, stand higher in the scale of social utility, and are therefore of more paramount obligation, than any others; though particular cases may occur in which some other social duty is so important, as to overrule any one of the general

> maxims of justice. Thus to save a life, it may not only be allowable, but a duty, to steal, or take by force, the necessary food or medicine ...

Harris reading Y and Z

John Harris, 'The Survival Lottery', Philosophy 50 (1975), pp. 81–7; in Shafer-Landau (ed.), Ethical Theory (2013), p. 474.

> Y needs a new heart and Z new lungs. They point out that if just one healthy person were to be killed his organs could be removed and both of them be saved. ... Y and Z might go on to point out that the currently acknowledged right of the innocent not to be killed, even where their deaths might give life to others, is just a decision to prefer the lives of the fortunate to those of the unfortunate. A is innocent in the sense that he has done nothing to deserve death, but Y and Z are also innocent in this sense.

Reading the argument

'To have a right' is to have something society ought to defend me in the possession of. Ask why it ought, and Mill gives 'no other reason than general utility'. The intensity of the feeling of justice is explained by security, the one interest no one can do without. Reading 2 gives the structure: justice is 'certain classes of moral rules' that 'concern the essentials of human well-being more nearly' and so are 'of more absolute obligation'. This is rule utilitarianism applied to rights: the common good is served by rules that take some options off the table.

The same reading admits the exception. 'Particular cases may occur' in which another duty overrules a maxim of justice: stealing food or medicine to save a life. Justice then bends to utility. Harris's Y and Z argue in that spirit: the right of the innocent not to be killed is 'just a decision to prefer the lives of the fortunate to those of the unfortunate'. MacAskill, Meissner and Chappell ('The Rights Objection') set out four utilitarian replies: deny that the killing would in fact produce the best outcome once risk and lost trust are counted; treat the intuition against it as the product of a useful rule; argue that rival theories fare no better; or accept the verdict. Each has a cost: the first makes the answer depend on facts that could change, the second concedes that the rule rather than the act is being judged, the third leaves the objection standing, and the fourth is what the objection was designed to expose.

Questions for study

Comprehension *(AO1)*

1. Using Mill's extract, explain what it is 'to have a right', and the only reason Mill gives for why society ought to defend it.
2. Explain why, in Mill's second reading, the rules of justice are 'of more absolute obligation' than other rules, and what the 'particular cases' show about that obligation.

Analysis *(AO1 and AO2)*

1. Analyse Mill's claim that justice is 'a name for certain classes of moral rules', and identify what makes this a form of 'following accepted laws' rather than a calculation of each case on its own merits.
2. Analyse Y and Z's argument that the right not to be killed is 'just a decision to prefer the lives of the fortunate to those of the unfortunate', and identify the premise a defender of rights must reject.

Synthesis *(AO1 and AO2)*

1. Synthesise Mill's account of rights with Smart's rule-worship objection (Topic 6) to show whether a utilitarian can treat the rule against killing the innocent as binding in the case Harris describes.

Evaluation *(AO2)*

1. Critically evaluate whether grounding rights in 'general utility' secures them, or leaves them hostage to the calculation that would override them.
2. Critically evaluate whether rule utilitarianism, in 'promoting the common good', gives a better answer to Y and Z than act utilitarianism can.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

'The morality of a law depends on the consequences of following it.' Discuss. [40]

9 Mill's 'Bentham'

Introduction

In 1838, six years after Bentham's death, Mill published an assessment of his teacher. He credits Bentham with reforming the law and with a method that reasons about wholes only after separating them into parts, then sets out what the system leaves out: conscience, the pursuit of excellence for its own sake, and the whole department of morality concerned with the formation of character. The essay is an extension beyond the examination's reading list; read it as the origin of the differences between Parts I and II.

The text

Mill, 'Bentham' (1838), paras 35 and 42.

> By these limits, accordingly, Bentham's knowledge of human nature is bounded. It is wholly empirical; and the empiricism of one who has had little experience. ... Man is never recognized by him as a being capable of pursuing spiritual perfection as an end ... Even in the more limited form of Conscience, this great fact in human nature escapes him.

Mill reading 2 The two parts of morality

Mill, 'Bentham' (1838), para. 49.

> Morality consists of two parts. One of these is self-education; the training, by the human being himself, of his affections and will. That department is a blank in Bentham's system. The other and co-equal part, the regulation of his outward actions, must be altogether halting and imperfect without the first ... A moralist on Bentham's principles may get as far as this, that he ought not to slay, burn or steal; but what will be his qualifications for regulating the nicer shades of human behaviour, or for laying down even the greater moralities as to those facts in human life which tend to influence the depths of the character quite independently of any influence on worldly circumstances – such, for instance, as the sexual relations, or those of family in general, or any other social and sympathetic connections of an intimate kind?

Mill reading 3 Push-pin and poetry

Mill, 'Bentham' (1838), para. 74.

> He says, somewhere in his works, that 'quantity of pleasure being equal, push-pin is as good as poetry': but this is only a paradoxical way of stating what he would equally have said of the things which he most valued and admired.

Reading the argument

Mill's charge is not that Bentham's conclusions are false but that his knowledge of human nature is thin: 'wholly empirical; and the empiricism of one who has had little experience'. The system recognises no desire for 'spiritual perfection as an end' and no conscience: 'this great fact in human nature escapes him'. For Mill this is an error inside utilitarianism, not an argument against it: if people do desire to be of a certain character, that desire belongs in the sum of happiness, and a theory that cannot see it will miscount. Reading 2 makes the point practical. A moralist on Bentham's principles reaches 'he ought not to slay, burn or steal' but has nothing to say about 'the nicer shades of human behaviour', which depend on the effect of conduct on character.

Reading 3 contains the famous sentence, and Mill's gloss matters. Push-pin was a children's game; 'push-pin is as good as poetry', quantity of pleasure being equal, is not a failure of taste but the theory stated without disguise. Mill's higher pleasures (Topic 5) and his insistence on rules and education (Topic 6) are the repairs. Two questions follow. If Bentham's calculus can be extended to count the pleasures of character, is Mill's objection answered? And if Mill's repairs require judgements of quality that the calculus cannot make, is the result still a theory in which utility alone decides?

Questions for study

Comprehension *(AO1)*

1. Using Mill's extract, explain what Mill means by saying that Bentham's knowledge of human nature is 'the empiricism of one who has had little experience'.
2. Explain the two parts of morality Mill distinguishes in the second reading, and why he says that the first is 'a blank in Bentham's system'.

Analysis *(AO1 and AO2)*

1. Analyse Mill's claim that a moralist on Bentham's principles 'may get as far as this, that he ought not to slay, burn or steal', and identify what Mill thinks such a moralist cannot do and why.
2. Analyse Mill's gloss on 'push-pin is as good as poetry' to show how the remark follows from calculating the consequences of each situation on its own merits with quantity of pleasure as the only measure.

Synthesis *(AO1 and AO2)*

1. Synthesise Mill's criticisms of Bentham with Mill's own account of higher pleasures and secondary principles (Topics 5 and 6), and state what Mill keeps from Bentham and what he changes.

Evaluation *(AO2)*

1. Critically evaluate whether Mill's criticism that Bentham overlooks character shows that act utilitarianism is not a helpful method of moral decision-making, or only that Bentham applied it with too few premises.
2. Critically evaluate whether utilitarianism, once it counts the desire for excellence of character as part of happiness, still judges actions by utility alone.

Examination style essay *(AO1 16 marks and AO2 24 marks)*

'Act utilitarianism is the most important part of utilitarianism.' Discuss. [40]

Essay 1 A helpful method

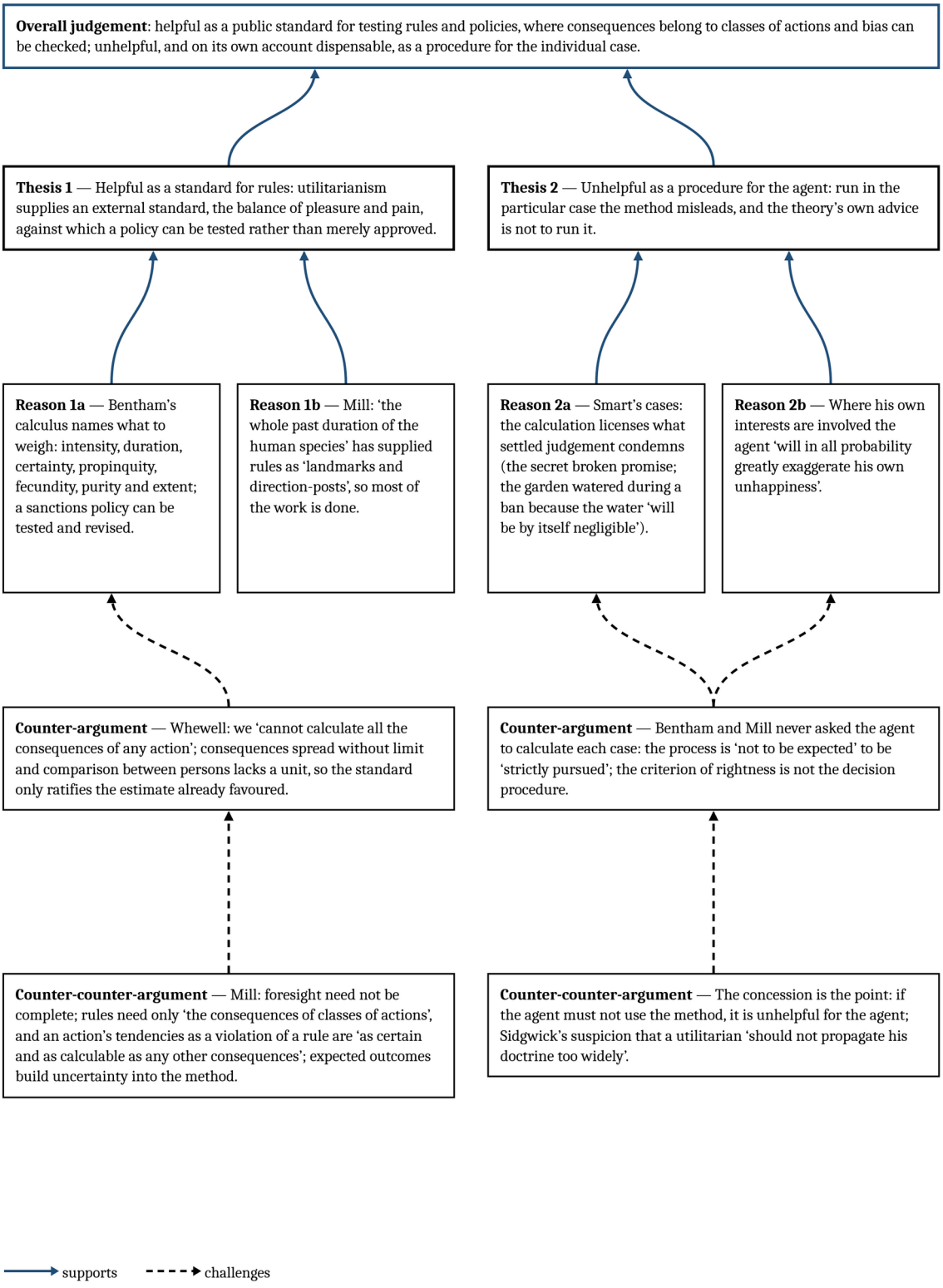
'Utilitarianism provides a helpful method of moral decision-making.' Discuss. [40]

Argument 1 Helpful as a standard for rules	Argument 2 Unhelpful as a procedure for the agent
Thesis For deciding which rules and policies to adopt, utilitarianism supplies what Bentham demanded of any principle: an external standard, the balance of pleasure and pain, against which a proposal can be tested rather than merely approved.	**Thesis** For the agent deciding what to do now, the method is unhelpful by its own admission: run in the particular case it misleads, and the theory's own advice is not to run it.
↓	↓
Argument in favour Bentham's calculus names what to weigh: intensity, duration, certainty, propinquity, fecundity, purity and extent. A head deciding a sanctions policy can ask which option prevents more harm than it causes, and revise it when the evidence changes. Mill adds that most of the work has been done: 'the whole past duration of the human species' has supplied rules as 'landmarks and direction-posts'.	**Argument in favour** Smart's cases show the calculation licensing what settled judgement condemns: a man who secretly breaks a promise to a dying friend so that the money goes to a hospital rather than a jockey club, or waters his garden during a ban because the water he uses 'will be by itself negligible', reasons correctly by the method. Where his own interests are involved, Smart adds, the agent 'will in all probability greatly exaggerate his own unhappiness'.
↓	↓
Counter-argument Whewell's objection: we 'cannot calculate all the consequences of any action', so the standard cannot be applied. Consequences spread without limit, and comparison between persons lacks a unit (Topic 2). A method whose inputs cannot be measured decides nothing; it ratifies the estimate the decider already favoured, which is the 'sympathy and antipathy' Bentham condemned.	**Counter-argument** Bentham and Mill never asked the agent to calculate each case: the process is 'not to be expected' to be 'strictly pursued previously to every moral judgement', and secondary principles are 'landmarks' precisely so that the first principle need not be consulted on the way. MacAskill, Meissner and Chappell separate the criterion of rightness from the decision procedure: the method says what is right, not how to decide.
↓	↓

Argument 1 Helpful as a standard for rules	Argument 2 Unhelpful as a procedure for the agent
Counter-counter-argument Mill replies that foresight need not be complete to guide, and that moral rules require only 'the consequences of classes of actions'; the tendencies an action has as a violation of a general rule are 'as certain and as calculable as any other consequences'. Modern utilitarians judge by expected rather than actual outcomes, so uncertainty is built into the method. Imprecision is a limit the method shares with every method applied to uncertain facts.	**Counter-counter-argument** The concession is the point. If the agent must not use the method, then as a method of decision-making for the agent it is unhelpful, and the help comes from rules whose authority the theory ranks as provisional. Smart records Sidgwick's suspicion that a utilitarian 'should not propagate his doctrine too widely'; a method best kept from those who decide is not a helpful one for them.

Overall judgement Helpful as a public standard for testing rules and policies, where consequences belong to classes of actions and bias can be checked; unhelpful, and on its own account dispensable, as a procedure for the individual case. A verdict should say at which level it is given, since the two chains answer different questions.

Essay 1 'Utilitarianism provides a helpful method of moral decision-making.' Discuss.



Essay 2 Measuring pleasure

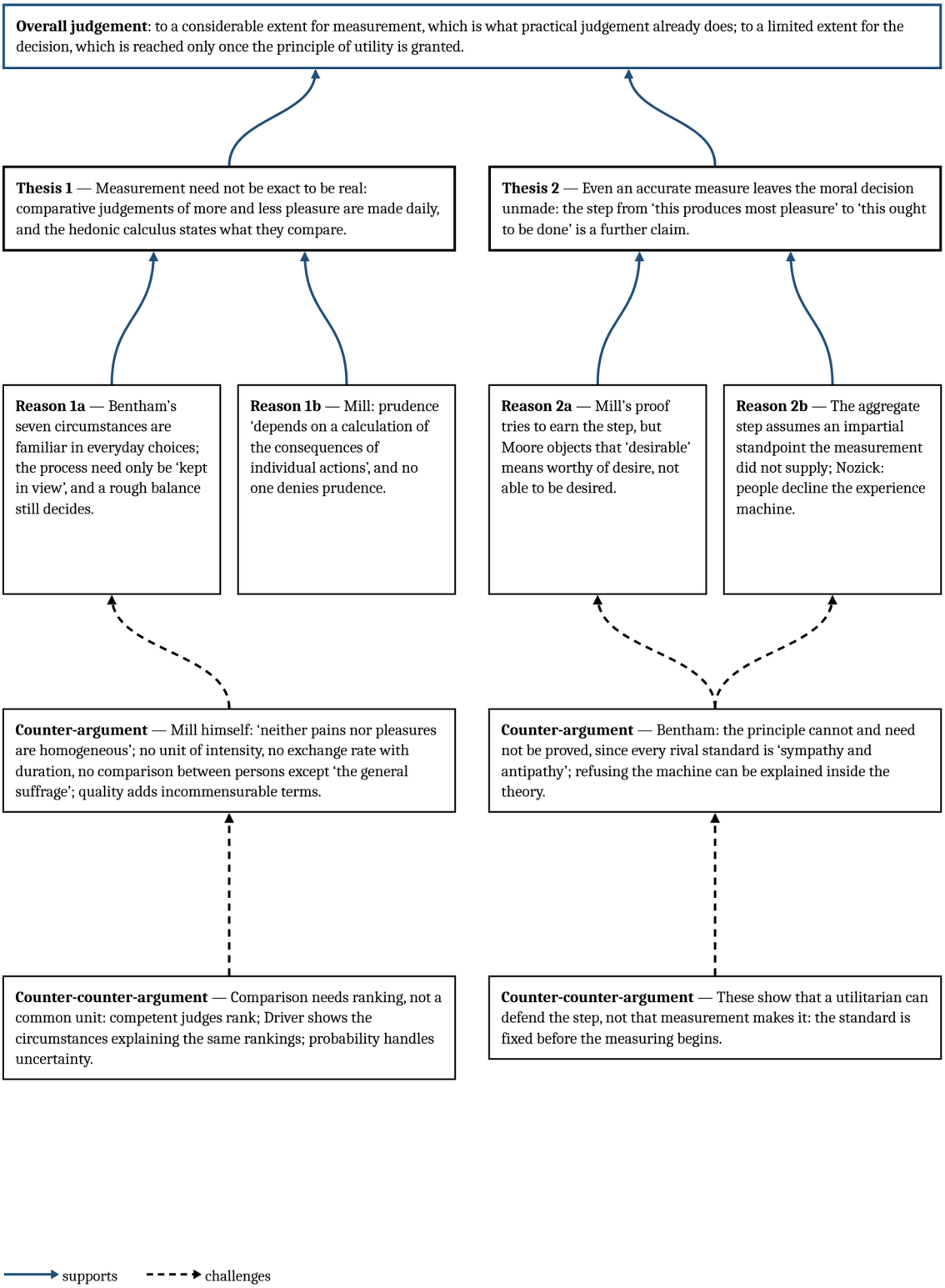
To what extent is it possible to measure good or pleasure and then reach a moral decision? [40]

Argument 1 Measurement is possible enough	Argument 2 Measurement does not reach a decision
Thesis Measurement need not be exact to be real: comparative judgements of more and less pleasure are made daily, and the hedonic calculus states what they compare.	**Thesis** Even an accurate measure of pleasure leaves the moral decision unmade: the step from 'this produces most pleasure' to 'this ought to be done' is a further claim.
↓	↓
Argument in favour Bentham's seven circumstances are familiar: a pupil choosing between revising and a party weighs duration, certainty and fecundity without naming them. Mill observes that prudence 'depends on a calculation of the consequences of individual actions', and no one denies prudence. Bentham asks only that the process be 'kept in view'. A rough balance can still show that moving a lesson to the end of the day costs more concentration than it saves.	**Argument in favour** Mill's proof is the attempt to earn that step: the desirable is known from the desired, and the general happiness is 'a good to the aggregate of all persons'. Moore objects that 'desirable' means worthy of desire, not able to be desired, and the aggregate step assumes an impartial standpoint the measurement did not supply. Nozick adds that people decline the experience machine.
↓	↓
Counter-argument Mill himself concedes that 'neither pains nor pleasures are homogeneous': there is no unit of intensity, no exchange rate between intensity and duration, and no way to compare one person's pleasure with another's except 'the general suffrage' of the experienced. Add Mill's claim that pleasures differ in quality and the sum has incommensurable terms.	**Counter-argument** Bentham holds that the principle cannot be proved and need not be, since every rival standard, examined, is 'sympathy and antipathy'. The critic who refuses the step from pleasure to 'ought' owes an alternative standard that can be measured at all. Refusing the machine can be explained inside the theory: distrust, concern for others, or a bias in favour of the actual.
↓	↓
Counter-counter-argument Comparison does not require a common unit: competent	**Counter-counter-argument** These replies show that a utilitarian can defend the step,

Argument 1 Measurement is possible enough	Argument 2 Measurement does not reach a decision
judges rank pleasures, and ranking is enough for most decisions; where it is not, the decision is hard on any theory. Driver shows Bentham's circumstances explaining the same rankings quantitatively. Uncertainty is handled by weighing outcomes by their probability. The imprecision belongs to the subject matter, not to the method.	not that measurement makes it. The decision is reached by accepting the principle of utility, and the principle is accepted on grounds that are not measurements. Measuring pleasure informs a decision whose standard was fixed before the measuring began; the question runs two tasks together.

Overall judgement To a considerable extent for the first task: comparative measurement is possible, and it is what practical judgement already does. To a limited extent for the second: measurement reaches a moral decision only once the principle of utility is granted, which is where the serious disagreement lies.

Essay 2 To what extent is it possible to measure good or pleasure and then reach a moral decision?



Essay 3 Rules and acts

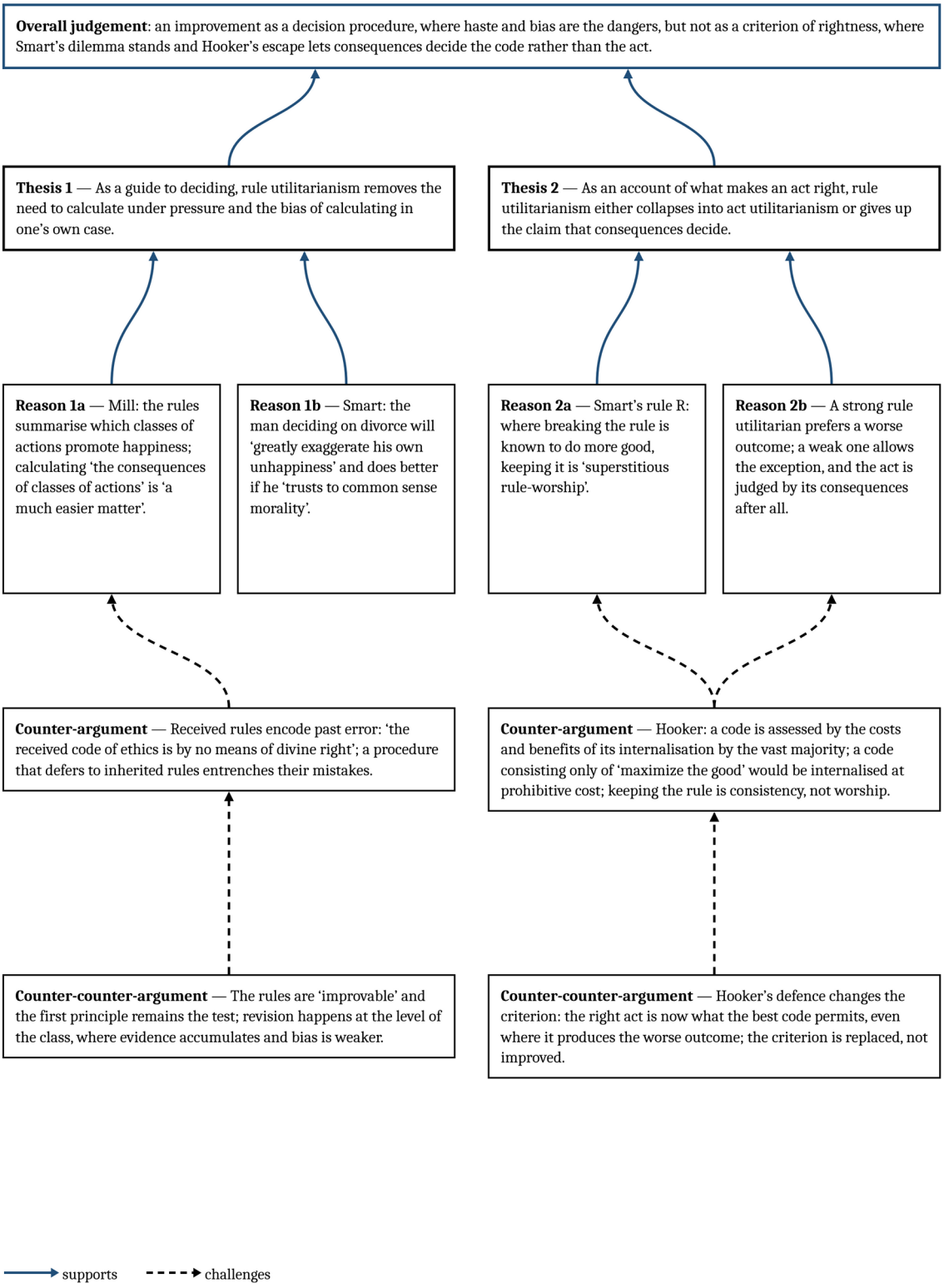
Assess the view that rule utilitarianism successfully improves on act utilitarianism. [40]

Argument 1 An improved decision procedure	Argument 2 Not an improved criterion
Thesis As a guide to deciding, rule utilitarianism improves on the act version: it removes the need to calculate under pressure and the bias of calculating in one's own case.	**Thesis** As an account of what makes an act right, rule utilitarianism either collapses into act utilitarianism or gives up the claim that consequences decide.
↓	↓
Argument in favour Mill: the rules of morality are experience's summary of which classes of actions promote happiness, so no agent need test each act 'directly by the first principle', and calculating 'the consequences of classes of actions' is 'a much easier matter'. Smart grants that a man deciding on divorce will 'greatly exaggerate his own unhappiness' and does better if he 'trusts to common sense morality'.	**Argument in favour** Smart's rule R: where breaking the rule is known to do more good, keeping it is 'superstitious rule-worship'. A strong rule utilitarian therefore prefers a worse outcome, which no utilitarian can consistently do; a weak rule utilitarian allows the exception, and the act is then judged by its own consequences after all. Either the criterion is abandoned or it is unchanged.
↓	↓
Counter-argument Received rules encode past error as well as past experience. Mill himself says that 'the received code of ethics is by no means of divine right' and that mankind 'have still much to learn as to the effects of actions on the general happiness'. A procedure that defers to inherited rules entrenches whatever those rules got wrong; the act utilitarian's readiness to recalculate is the only corrective.	**Counter-argument** Hooker replies that a code is assessed by the costs and benefits of its being internalised by the vast majority of people, not by compliance in one case; a code consisting only of 'maximize the good' would be internalised at prohibitive cost. Keeping the rule in the rare case is consistency with the better code, not worship, and the code is the criterion.
↓	↓
Counter-counter-argument The rules are 'improvable', and the first principle remains the test: when a class of actions is shown to	**Counter-counter-argument** Hooker's defence succeeds by changing the criterion: the right act is now the act the best code

Argument 1 An improved decision procedure	Argument 2 Not an improved criterion
harm, the rule is revised, as a sanctions policy is revised once its effects are known. Revision happens at the level of the class, where evidence accumulates and bias is weaker, not in the agent's own case. The procedure is improved because its errors are corrected in the right place.	permits, even where it produces the worse outcome. That is a different theory from Bentham's judgement of 'every action whatsoever' by its tendency. So defended, rule utilitarianism has not improved the utilitarian criterion but replaced it, and the question becomes whether the replacement is still utilitarianism.

Overall judgement Rule utilitarianism improves on act utilitarianism as a decision procedure, where haste and bias are the dangers, but not as a criterion of rightness: there Smart's dilemma stands, and Hooker's escape from it lets consequences decide the code rather than the act.

Essay 3 Assess the view that rule utilitarianism successfully improves on act utilitarianism.



Essay 4 The basis of morality

'Morality is not based on utility.' Discuss. [40]

Argument 1 Utility is at least part of the basis	Argument 2 Justice claims more than utility supplies
Thesis Morality is based on utility at least in part: the rules most people accept are explained by the harm they prevent, and every rival basis either reduces to utility or rests on approval offered as a reason for itself.	**Thesis** The rules of justice claim an authority that utility cannot supply, since utility would override them whenever the sum required it; if that claim is sound, morality rests on something more.
↓	↓
Argument in favour Bentham: rival standards 'consist all of them in so many contrivances for avoiding the obligation of appealing to any external standard'. Rules against theft, lying and cruelty track the mischief they prevent, and change when the mischief changes. Mill's proof supplies the positive case: the only evidence that anything is desirable is that it is desired, and happiness is what everyone desires.	**Argument in favour** Harris's Y and Z: on utility, one healthy person should be killed to save two, and the right of the innocent not to be killed is 'just a decision to prefer the lives of the fortunate to those of the unfortunate'. Ordinary morality holds the right binding regardless of the sum; so far as ordinary morality is right, it is not based on utility.
↓	↓
Counter-argument Moore: Mill's proof confuses the desired with the desirable. Bentham's dismissal of rivals is itself a sentiment, approval of pleasure, held up 'as a reason for itself'; his standard is external only to those who already accept it.	**Counter-argument** Mill: a right is 'something which society ought to defend me in the possession of', and the only reason it ought is 'general utility'. Justice names 'certain classes of moral rules' concerning security, the one interest no one can do without, which is why its obligation is 'more absolute'. Its authority is utility's authority at its highest.
↓	↓
Counter-counter-argument Mill disclaimed proof in the strict sense; the argument is that no other end commands the	**Counter-counter-argument** Mill's own admission that 'particular cases may occur' in which justice is overruled, as in stealing

Argument 1 Utility is at least part of the basis	Argument 2 Justice claims more than utility supplies
same assent. The critic who denies that morality is based on utility must name its basis, whether duty, nature or intuition, and each faces Bentham's question of how it is known except by approval. A basis that explains the rules we have, and permits their correction, is a basis.	medicine to save a life, shows that on his account the 'character of absoluteness' he describes is a feeling, not an authority: justice bends when the sum bends, and Y and Z's demand is what the theory licenses. Whoever holds the right binding against the sum must locate its authority elsewhere.

Overall judgement The flat claim fails: utility is at least part of the basis of the rules most people accept, and no rival basis has escaped Bentham's challenge. The claim keeps its force only so far as the authority of justice resists reduction to utility; Mill asserts the reduction but does not prove it.

Essay 4 ‘Morality is not based on utility.’ Discuss.

